



Companies House

CS01 (ef)

Confirmation Statement

Company Name: **ALPHA FMC MIDCO LIMITED**

Company Number: **09928345**



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Company Name: **ALPHA FMC MIDCO LIMITED**

Company Number: **09928345**

Confirmation **23/12/2016**

Statement date:

Sic Codes: **70229**

Principal activity description: **Management consultancy activities other than financial management**

Statement of Capital (Share Capital)

Class of Shares:	ORDINARY	Number allotted	15960
	'A' GBP1	Aggregate nominal value:	15960
	SHARES		

Currency: **GBP**

Prescribed particulars

(A) SUBJECT TO ARTICLES 7 3 3 AND 7 3 4 - 7 3 7 OF THE COMPANY'S ARTICLES OF ASSOCIATION, THE A ORDINARY SHARES SHALL ENTITLE ANY HOLDER THEREOF TO RECEIVE NOTICE OF, AND TO ATTEND AND SPEAK, AT ANY GENERAL MEETING AND ON A POLL EACH A ORDINARY SHARE SHALL CARRY ONE VOTE. THE A ORDINARY SHAREHOLDERS (AS A CLASS) SHALL BE ENTITLED TO CAST 100% OF THE VOTING RIGHTS THAT ARE NOT CAPABLE OF BEING CAST BY B ORDINARY SHAREHOLDERS PURSUANT TO PARAGRAPH 7 3 1 (B) OF THE COMPANY'S ARTICLES OF ASSOCIATION AND WHERE THERE IS MORE THAN ONE HOLDER OF A ORDINARY SHARE EACH HOLDER SHALL BE ENTITLED TO CAST THAT PROPORTION OF THE VOTING RIGHTS CAPABLE OF BEING CAST BY THE A ORDINARY SHAREHOLDERS THAT HIS HOLDING OF A ORDINARY SHARES BEARS TO THE TOTAL NUMBER OF A ORDINARY SHARES IN ISSUE (B) SUBJECT TO ARTICLES 7 2 2 AND 7 2 3 OF THE COMPANY'S ARTICLES OF ASSOCIATION (A) THE CAPITAL AND ASSETS OF THE COMPANY ON A WINDING-UP OR OTHER RETURN OF CAPITAL AVAILABLE FOR DISTRIBUTION, AND (B) THE PROCEEDS OF SALE (AS DEFINED IN THE COMPANY'S ARTICLES OF ASSOCIATION), SHALL BE DISTRIBUTED AMONGST THE ORDINARY SHAREHOLDERS AS FOLLOWS (I) IN PAYING TO EACH HOLDER OF THE B ORDINARY SHARES AN AMOUNT EQUAL TO THE B SHARE SUBSCRIPTION AMOUNT (AS DEFINED IN THE COMPANY'S ARTICLES OF ASSOCIATION) PER B ORDINARY SHARE AND ANY B SHARE DIVIDENDS (AS DEFINED IN THE COMPANY'S ARTICLES OF ASSOCIATION) ACCRUED BUT UNPAID ON THE B ORDINARY SHARES HELD BY THE RELEVANT HOLDER AND, IF THERE IS A SHORTFALL OF PROCEEDS AVAILABLE TO SATISFY SUCH PAYMENTS IN FULL, THE PROCEEDS SHALL BE SHARED AMONG THE HOLDERS OF THE ORDINARY SHARES PRO RATA ACCORDING TO THE NUMBER OF ORDINARY SHARES HELD, (II) FROM THE BALANCE (IF ANY) OF THE PROCEEDS REMAINING AFTER THE PAYMENT OF THOSE SUMS REFERRED TO IN ARTICLES 7 2 1 (I) OF THE COMPANY'S ARTICLES OF ASSOCIATION, IN PAYING THIS TO THE HOLDERS OF THE A ORDINARY SHARES PRO RATA ACCORDING TO THE NUMBER OF A ORDINARY SHARES HELD FOR THE AVOIDANCE OF DOUBT, TO THE EXTENT THERE IS MORE THAN ONE DISTRIBUTION TO BE PAID BY THE COMPANY, THE HOLDERS OF B ORDINARY

SHARES SHALL ONLY BE ENTITLED TO A PAYMENT IN ACCORDANCE WITH ARTICLE 7 2 1 (I) ONCE, FOLLOWING WHICH ALL FURTHER DISTRIBUTIONS SHALL BE PAID TO THE HOLDERS OF A ORDINARY SHARES UPON A SALE, THOSE ORDINARY SHARE NOT ACQUIRED BY THE RELEVANT PURCHASER(S) SHALL NOT BE ENTITLED TO ANY ALLOCATION OF PROCEEDS PURSUANT TO ARTICLE 7 2 1 OF THE COMPANY'S ARTICLES OF ASSOCIATION (C) ANY PROFITS WHICH THE DIRECTORS LAWFULLY DETERMINE TO DISTRIBUTE TO THE A ORDINARY SHAREHOLDERS IN RESPECT OF ANY FINANCIAL YEAR, AFTER DECLARATION OF ANY B SHARE DIVIDENDS (AS DEFINED IN THE COMPANY'S ARTICLES), SHALL BE DISTRIBUTED AMONGST THE A ORDINARY SHAREHOLDERS (IN RESPECT OF THEIR A ORDINARY SHARES ONLY) PRO RATA AND PARI PASSU ACCORDING TO THE NUMBER OF A ORDINARY SHARES HELD BY EACH OF THEM (D) THE A ORDINARY SHARES MAY BE ISSUED ON THE TERMS THAT THEY ARE, OR AT THE OPTION OF THE COMPANY OR THE HOLDER ARE LIABLE, TO BE REDEEMED AND THE COMPANY'S BOARD (SUBJECT TO THE TERMS OF THE INVESTMENT AGREEMENT AND THE FINANCE DOCUMENTS (EACH AS DEFINED IN THE COMPANY'S ARTICLES OF ASSOCIATION) SHALL BE AUTHORISED TO DETERMINE THE TERMS, CONDITIONS AND MANNER OF REDEMPTION OF SUCH SHARES

Class of Shares:	ORDINARY	Number allotted	4040
	'B' GBP1	Aggregate nominal value:	4040
	SHARES		

Currency: GBP

Prescribed particulars

(A) SUBJECT TO ARTICLES 7 3 3 AND 7 3 4-7 3 7 OF THE COMPANY'S ARTICLES OF ASSOCIATION, THE B ORDINARY SHARES SHALL ENTITLE ANY HOLDER THEREOF TO RECEIVE NOTICE OF, AND TO ATTEND AND SPEAK, AT ANY GENERAL MEETING AND ON POLL EACH B ORDINARY SHARE SHALL CARRY ONE VOTE SAVE WHERE A LEAVER OR PERMITTED TRANSFEREE (EACH AS DEFINED IN THE COMPANY'S ARTICLES OF ASSOCIATION) OF A LEAVER HOLDS ANY INTEREST IN ANY B ORDINARY SHARE, EACH B ORDINARY SHAREHOLDER SHALL BE ENTITLED TO CAST 5% OF THE TOTAL NUMBER OF VOTING RIGHTS CAPABLE OF BEING CAST BY ALL HOLDERS OF ORDINARY SHARES IRRESPECTIVE OF THE NUMBER OF B ORDINARY SHARES HELD BY SUCH B ORDINARY SHAREHOLDER. THE MAXIMUM NUMBER OF B SHAREHOLDERS IS 4. THE ONLY ACTS OR OMISSIONS OF THE COMPANY WHICH WILL REQUIRE A CLASS CONSENT OF THE B ORDINARY SHARES SHALL BE ANY DELETION OR VARIATION OF ARTICLE 7 3 1(B) OF THE COMPANY'S ARTICLES (SAVE THAT NO CLASS CONSENT SHALL BE

REQUIRED WHERE SUCH DELETION OR VARIATION RESULTS FROM THE OPERATION OF CLAUSE 18 OF THE INVESTMENT AGREEMENT (AS DEFINED IN THE COMPANY'S ARTICLES) OR UPON ANY INTEREST IN THE B ORDINARY SHARES BEING HELD BY LEAVERS OR PERMITTED TRANSFEREES OF LEAVERS), AN SUCH CLASS CONSENT OF THE B ORDINARY SHARES MAY BE GIVEN BY THE HOLDERS OF A MAJORITY OF THE B ORDINARY SHARES THEN IN ISSUE (EXCLUDING ANY B ORDINARY SHARES IN WHICH ANY INTEREST IS HELD BY AN LEAVER OR ANY PERMITTED TRANSFEREE OF A LEAVER TO WHICH ARTICLE 7 3 5 APPLIES) THE PROVISION OF ARTICLE 7 3 5 OF THE COMPANY'S ARTICLES SHALL APPLY (A) IF, AT ANY TIME WITHOUT INVESTOR DIRECTOR CONSENT (AS DEFINED IN THE COMPANY'S ARTICLES), ANY HOLDER OF B ORDINARY SHARES HAS TRANSFERRED SHARES OR ANY INTEREST THEREIN OR ANY OTHER SECURITY OR INTEREST THEREIN IN ANY MEMBER OF THE GROUP (AS DEFINED IN THE COMPANY'S ARTICLES) IN BREACH OF ANY PROVISION OF THE COMPANY'S ARTICLES, THE TOPCO ARTICLES OR THE NOMINEE AGREEMENT (EACH AS DEFINED IN THE INVESTMENT AGREEMENT (AS DEFINED IN THE COMPANY'S ARTICLES)) OR THE B LOAN NOTE TRANSFER AGREEMENT (AS DEFINED IN THE INVESTMENT AGREEMENT), (B) IF, AT ANY TIME WHITHOUT INVESTOR DIRECTOR CONSENT, ANY HOLDER OF B ORDINARY SHARES IS IN MATERIAL BREACH OF ANY PROVISION OF THE COMPANY'S ARTICLES AND/OR THE INVESTMENT AGREEMENT AND/OR THE NOMINEE AGREEMENT AND/OR THE B LOAN NOTE TRANSFER AGREEMENT OR ANY FORMER HOLDER OF B ORDINARY SHARES IS IN MATERIAL BREACH OF ANY PROVISION OF THE INVESTMENT AGREEMENT IF ANY OF THE CIRCUMSTANCES STATED IN ARTICLE 7 3 4 OF THE COMPANY'S ARTICLES HAVE OCCRUED IN RESPECT OF THE B ORDINARY SHEHOLDER REFERRED TO IN ARTICLE 7 3 4 OF THE COMPANY'S ARTICLES (THE " DEFAULTING PERSON"), THEN, UNLESS OTHERWISE AGREED IN WRITING BY THE JHOLDER OF THE MAJORITY OF A ORDINARY SHARES (A) THE SHARES IN WHICH SUCH DEFAULTING PERSON HOLDAS ANY LEAGAL OR BENEFICAL INTERST OR TO WHICH HE IS ENTITLED PURSUAN TO THE NOMINEE AGREEMENT OR OTHERWISE, AND (B) ANY SHARES (OR INTERESTS THEREIN) FORMERLY HELD BY SUCH DEFAULTING PERSON WHICH HAVE BEEN TRANSFERRED EITHER IN BREACH OF THE PROVISIONS OF THE COMPANY'S ARTICLES OF ASSOCIATION OR THE NOMINEE AGREEMENT, (SEE CONTINUATION PAGE)

Class of Shares:	PREFERENCE	Number allotted	1322044
	GBP0.000005	Aggregate nominal value:	6.61022
	SHARES		
Currency:	GBP		

(A) PREFERENCE SHARES SHALL NOT ENTITLE THE HOLDER THEREOF TO ATTEND OR VOTE AT ANY GENERAL MEETING OF THE COMPANY (B) NO DIVIDEND MAY BE PAID IN RESPECT OF ANY PREFERENCE SHARE (C) IN A WINDING-UP OF THE COMPANY FROM THE ASSETS OF THE COMPANY AVAILABLE TO THE HOLDERS OF SHARES THE HOLDERS OF PREFERENCE SHARES (IN RESPECT OF THEIR PREFERENCE SHARES ONLY) SHALL RECEIVE IN PRIORITY TO ANY PAYMENT IN RESPECT OF ANY OTHER SHARE AN AMOUNT PER PREFERENCE SHARE EQUAL TO (I) GBP1 (THE "PRINCIPAL VALUE") PLUS (II) A SUM EQUAL TO 8% PER ANNUM WHICH SHALL BE DEEMED TO ACCRUE ON THE OUTSTANDING VALUE (AS DEFINED BELOW) FROM DAY TO DAY ON THE BASIS OF A 365 DAY YEAR (OR A 366DAY YEAR IN THE CASE OF A LEAP YEAR) FROM THE DATE OF ISSUE OF THE PREFERENCE SHARE UNTIL THE EARLIEST OF (AND INCLUDING) THE DATE OF REDEMPTION OF THE RELEVANT PREFERENCE SHARE AND THE DATE OF WINDING-UP OF THE COMPANY. THE PREMIUM (AS DEFINED BELOW) (IF ANY) WHICH HAS ACCRUED AS AT THE EACH ANNIVERSARY OF THE DATE OF ADOPTION OF THE COMPANY'S ARTICLES WILL BE COMPOUNDED WITH THE PRINCIPAL VALUE (AS DEFINED IN THE COMPANY'S ARTICLES) OUTSTANDING AS AT SUCH ANNIVERSARY)AND SUCH PRINCIPAL VALUE PLUS SUCH COMPOUNDED SUMS FROM TIME TO TIME SHALL BE THE "OUTSTANDING VALUE") THE TOTAL SUM CALCULATED UNDER (II) (INCLUDING ANY COMPOUNDED SUMS (BUT EXCLUDING THE PRINCIPAL VALUE)) SHALL BE DEEMED TO BE THE "PREMIUM" FOR THE PURPOSE OF THE COMPANY'S ARTICLES. UPON PAYMENT OF THE AMOUNTS REFERRED TO IN ARTICLE 7 2 3(A) OF THE COMPANY'S ARTICLES THE PREFERENCE SHARES SHALL NOT BE ENTITLED TO ANY FURTHER AMOUNT OF CAPITAL OR DISTRIBUTION. IF THE ASSETS OF THE COMPANY AVAILABLE TO SHAREHOLDERS ARE LESS THAN THE AMOUNT WHICH WOULD BE DUE TO ALL PREFERENCE SHARES UNDER THE FOREGOING PROVISIONS OF ARTICLE 7 2 3(A) OF THE COMPANY'S ARTICLES (THE "PREFERENCE PROCEEDS"), THESE PREFERENCE PROCEEDS WILL BE DISTRIBUTED AMONGST THE PREFERENCE SHAREHOLDERS PRO RATA BY REFERENCE TO THE NUMBER OF PREFERENCE SHARES HELD IN THE EVENT OF A SALE, THE HOLDERS OF PREFERENCE SHARES (IN RESPECT OF THEIR PREFERENCE SHARES ONLY) SHALL RECEIVED FROM THE PROCEEDS OF THE SALE AVAILABLE IN RESPECT OF THE SHARES BEING SOLD IN PRIORITY TO ANY OTHER SHARE AN AMOUNT PER PREFERENCE SHARE EQUAL TO THE PRINCIPAL VALUE PLUS THE PREMIUM (TO BE CALCULATED UP TO (AND INCLUDING) THE DATE OF COMPLETION OF THE SALE) AND SHALL NOT BE ENTITLED TO ANY FURTHER PARTICIPATION IN THE PROCEEDS OF THE SALE. IF THE PROCEEDS OF THE SALE OR THE DRAG

SALE (AS DEFINED IN THE COMPANY'S ARTICLES) AVAILABLE IN RESPECT OF THE SHARE BEING SOLD ARE LESS THAN THE AMOUNT WHICH WOULD BE DUE TO ALL PREFERENCE SHARES UNDER THE FOREGOING PROVISION OF ARTICLE 7 2 3(B) OF THE COMPANY'S ARTICLES (THE "PREFERENCE PROCEEDS2), THOSE PREFERENCE PROCEEDS WILL BE DISTRIBUTED AMONGST THE PREFERENCE SHAREHOLDER PRO RATA BY REFERENCE TO THE NUMBER OF PREFERENCE SHARES HELD AS BETWEEN THE HOLDERS OF PREFERENCE SHARES, THE ASSERTS OR PROCEEDS DUE TO THEM UNDER ARTICLE 7 2 3(A) OR (B) OF THE COMPANY'S ARTICLES (AS THE CASE MAY BE) SHALL BE ALLOCATED ACROSS ALL OF THE PREFERENCE SHARES PARI PASSU AND PRO RATE TO THE NUMBER OF PREFERENCE SHARES HELD BY EACH HOLDER (SEE CONTINUATION PAGE)

Statement of Capital (Totals)

Currency:	GBP	Total number of shares:	1342044
		Total aggregate nominal value:	20006.61022
		Total aggregate amount unpaid:	0

Full details of Shareholders

The details below relate to individuals/corporate bodies that were shareholders during the review period or that had ceased to be shareholders since the date of the previous confirmation statement.

Shareholder information for a non-traded company as at the confirmation statement date is shown below

Shareholding 1: **15960 ORDINARY 'A' GBP1 SHARES shares held as at the date of this confirmation statement**

Name: **ALPHA FMC TOPCO LIMITED**

Shareholding 2: **4040 ORDINARY 'B' GBP1 SHARES shares held as at the date of this confirmation statement**

Name: **ALPHA FMC GROUP NOMINEES LTD**

Shareholding 3: **1322044 PREFERENCE GBP0.000005 SHARES shares held as at the date of this confirmation statement**

Name: **ALPHA FMC TOPCO LIMITED**

Persons with Significant Control (PSC)

PSC notifications

Notification Details

Date of becoming a registrable RLE: **06/04/2016**

Name: **ALPHA FMC TOPCO LIMITED**

Registered or Principal Office Address: **60 GRESHAM STREET
LONDON
UNITED KINGDOM
EC2V 7BB**

Legal Form: **LIMITED COMPANY**

Governing Law: **COMPANIES ACT 2006**

Register: **ENGLAND & WALES**

Country/state of register: **ENGLAND & WALES**

Registration Number: **09965297**

Nature of control

The relevant legal entity holds, directly or indirectly, 75% or more of the shares in the company.

The relevant legal entity holds, directly or indirectly, 75% or more of the voting rights in the company.

Changes to PSC details

Details Prior to Change

Name: **ALPHA FMC TOPCO LIMITED**

New Details

Date of Change: **06/04/2016**

New Legal Form: **LIMITED COMPANY**

New Governing Law: **COMPANIES ACT 2006**

New Register: **ENGLAND & WALES**

New Country/state of register: **ENGLAND & WALES**

New Registration Number: **09965297**

Confirmation Statement

I confirm that all information required to be delivered by the company to the registrar in relation to the confirmation period concerned either has been delivered or is being delivered at the same time as the confirmation statement

Authorisation

Authenticated

This form was authorised by one of the following:

Director, Secretary, Person Authorised, Charity Commission Receiver and Manager, CIC Manager,
Judicial Factor